

Rules for the Regulation of Recruitment to the Bihar Public Health Service

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Rules for the Regulation of Recruitment to the Bihar Public Health Service

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Rules for the Regulation of Recruitment to the Bihar Public Health Service

Rule RULES-FOR-THE-REGULATION-OF-RECRUITMENT-TO-THE-BIHAR-PUBLIC-HEALTH-SERVICE of 1944

Published on 21 March 1944

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Rules for the Regulation of Recruitment to the Bihar Public Health Service

Published vide Notification No. 1437-L.S.-G., dated Patna the 21st March, 1944

Copy of Notification No. 1437-L.S.-G., dated Patna the 21st March, 1944 by the Government of Bihar, Local Self-Government Department. - In exercise of the powers conferred by clause (b) of sub-section (1) of Section 241 of the Government of India Act, 1935, and in supersession of Rules published in Government Notification No. 124-L.S.-G., dated the 5th January, 1931, His Excellency the Governor is pleased to make the following Rules for the Regulation of recruitment to the Bihar Public Health Service :-

General

1.

(1)

Appointments in the Bihar Public Health Service fall under the following classes:-

(i)

the posts of Assistant Directors of Public Health not reserved for officers of the Indian Medical Services;

(ii)

the posts of Chemical Analyst, Public Health Laboratory, Patna (who is also the Public Analyst for the purposes of the Prevention of Adulteration Act).

(iii)

the posts of Medical Officers of Health.

(iv)

the posts of Superintendent, Vaccine Depot, and of Personal Assistant to the Director of Public Health.

(2)

Appointment to these posts shall be made-

(a)

in the case of posts specified in clause (i) of sub-rule (1) of this Rule either by promotion of officers holding the posts named in clauses (iii) and (iv) of sub-rule (1) of this Rule; or, if no suitable qualified officer is available for promotion, by direct recruitment,

(b)

in the case of the posts specified in clauses (ii) and (iii) by direct recruitment, and

(c)

in the case of the posts specified in clause (iv) from the officers specified in clause (iii).

2.

The qualifications required for candidates for the posts specified in Rule (1) shall be as follows:-

(1)

For the post of an Assistant Director of Public Health, candidates shall-

(a)

possess a registrable medical qualification from a University or Medical College in the United Kingdom or India,

(b)

possess a diploma in Public Health or a University degree in Public Health obtained in and registrable in the United Kingdom or India, and

(c)

have had practical experience of the duties of a Medical Officer of Health or a Health Officer of a local body for at least five years.

(2)

For the post of a Medical Officer of Health, candidates shall-

(a)

possess the qualification prescribed in clause (a) of sub-rule (1) of this Rule, and

(b)

possess either the qualification prescribed in clause (b) of sub-Rule (1) of this Rule or a diploma in Public Health or a University degree in Public Health obtained in India and registrable under the Bihar and Orissa Medical Act, 1916 (Bihar and Orissa Act II of 1916):

Provided that if no suitable candidate is available possessing qualification (b) of this sub-rule a candidate qualified under clause (a) of this sub-rule may be appointed on probation on such conditions relating to the period within which and the circumstances in which he must obtain that qualification as may be prescribed by the Governor from time to time-

(c)

not be over 30 years as and in case of candidates belonging to the Scheduled Castes and Backward Tribes, 33 years of age on a date specified in the notice inviting applications under Rule 4. The Provincial Government may, however, relax this condition in special cases.

(3)

For the post of Chemical Analyst, candidates shall possess such special qualifications, in addition to the qualifications prescribed in sub-rule (2) of this Rule, as may be prescribed by the Governor from time to time.

3.

When a vacancy occurs or is anticipated the Governor will first decide whether it should be filled by promotion or by direct appointments.

Direct Appointment

4.

The Public Service Commission shall announce in such manner as it thinks fit the number of vacancies to be filled by direct appointment and shall invite applications from candidates eligible for appointment under Rule 2. The qualifications required to be inserted in the advertisement shall be decided under these Rules and supplied to the Commission by the Governor.

5.

Except under the special order of the Governor preference will be given to a candidate who is :-

(1)

a native of the province, or

(2)

a British subject domiciled in the province, or

(3)

An Anglo-Indian British subject of Indian domicile born in the province, and who is not permanently domiciled in any other province in India, or

(4)

a subject of an Indian State who is eligible for appointment to the service by virtue of a declaration made under Section 262(2) of the Government of India Act, 1935, if he is otherwise qualified.

6.

(a)

Every candidate for direct appointment shall submit his application in his own handwriting in the prescribed form to the Secretary to the Public Service Commission so as to reach him not later than such date as may be notified by the Commission.

(b)

The application shall be accompanied by a treasury challan of Rs. 5 as application fee, which will not ordinarily be refunded. When the fee has been paid on a first application, no fee will be payable on a subsequent application for appointment to the same service.

(c)

With his application a candidate must submit-

(i)

evidence that he holds the qualifications prescribed by Rule 2 for the appointment for which he is a candidate.

(ii)

certificates of character from the heads of all the colleges at which he had studied since he passed the Matriculation Examination.

(iii)

evidence, in the form of an acknowledgement from the District Officer of the district in which he ordinarily resides, or in which he claims to be domiciled, that he has, not later than 14 days before the date fixed under Rule 6(a), requested that officer to report to the Commission before the said date whether his character and antecedents are such as to render him suitable for appointment to the service for which he is a candidate.

Note.-While requesting the District Officer to furnish a report to the Commission of his character and antecedents, a candidate should furnish as references the names of two persons who know him in private life and are not near relatives. A candidate must not file written testimonials and the references furnished by him should not include College Professors or principals unless they know the candidate at home.

(iv)

evidence of age, which should ordinarily be the matriculation certificate or its equivalent in original;

(v)

if he claims to be domiciled in the province a certificate of domicile granted by the District Officer of the District in which he claims to be domiciled;

(vi)

a certificate from any registered medical practitioner in the prescribed form which may be obtained from the Secretary to the Public Service Commission;

(vii)

if he is an Anglo-Indian British subject and if he claims to have been born in this province evidence to prove this.

Note.-The certificates and other documents required should ordinarily be submitted in original. If any certificate or other document required cannot for any reason be submitted in original, a true copy of it may be sent, but in that case the copy should bear a certificate from a gazetted officer stating-

(a)

that he has seen the original and that the copy is a true copy, and

(b)

the reason why the original cannot be sent with the application.

7.

The Commission shall consider all applications received and shall interview such candidates as it considers suitable for appointment:

Provided that the Governor may, if he thinks fit, appoint an officer to represent the Department. The officer so appointed shall be present at the interview and shall advise the Commission on the apparent fitness of the candidates from the point of view of their possession of the special qualities required in the Public Health Service but he will not be responsible for the selection of candidates. The Commission in forwarding their recommendations should draw the attention of Government to any matter in regard to which they differ from the officer deputed to advise and assist them.

8.

(a)

From among the candidates interviewed, the Commission shall nominate and arrange in order of preference such number of candidates as may be fixed by the Governor.

(b)

The Commission shall, while submitting its recommendations, consider the claims of qualified candidates belonging to the Scheduled Castes, Backward Classes, Backward Tribes and Muhammadans. If the list of nominees submitted does not contain a reasonable number of candidates belonging to the aforesaid castes, classes and communities, a supplementary list shall be submitted nominating a sufficient number of such candidates who, in the opinion of the Commission, have the required standard of qualifications and are fit for appointment. The Commission shall further state how the candidates in the supplementary list compared with the candidate who is lowest on the main list.

(c)

The Commission in forwarding the list shall place the candidates in order of merit.

(d)

The list of candidates nominated by the Commission shall be submitted to the Governor by such date as the Governor may prescribe.

9.

(a)

The final selection of candidates shall be made by the Governor from amongst those who have been nominated by the Commission under Rule 8.

(b)

Every candidate so selected shall be examined by a Medical Board. A candidate who fails to satisfy the Medical Board shall not be appointed.

10.

The candidates finally selected will be on probation-

(a)

in the case of Assistant Directors of Public Health for two years, and

(b)

in the case of the officers named in clauses (ii) and (iii) of sub-rule (1) of Rule 1, for one year.

They may be discharged at any time within that period which may also be extended by the orders of the Governor.

11.

Appointments by promotion.

- Appointments to the posts of Assistant Directors of Public Health not reserved for officers of the I.M.S. made by promotion will be made by the Governor on the recommendation of the Director of Public Health.

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